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Judgment Sheet
LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Revision No.41 of 2014
(Muhammad Iqbal, etc. v. The State etc.)

JUDGMENT

Date of hearing: 13.06.2025.

Petitioners by: Mr. M. Ashraf Joyia, Advocate.
State by: Ch. Muhammad Ishaq, APG with Zafar
A.S.I.
Complainant by. Mian Muhammad Nawaz, Advocate.

Abher Gul Khan. Through this criminal revision moved in terms of Sections 435 & 439, Cr.P.C., Muhammad Iqbal & Muhammad Abbas (petitioners) have challenged the *vires* of judgment dated 03.05.2013 passed by learned Magistrate Section-30, Renala Khurd, whereby they, on culmination of trial in case FIR No.96/2009 dated 20.04.2009 registered under Sections 337-A(ii),337-F(ii),148 & 149 PPC at Police Station Saddar Renala Khurd, were convicted and sentenced as under:-

Muhammad Iqbal

Under Section 337A(ii) PPC to pay Arsh which was ordered to be determined as Rs.1,26,604/- i.e. 5% of Diyat amount.

Muhammad Abbas

Under Section 337F(ii) PPC to pay Daman only and same is determined as Rs.15000/-.

Being aggrieved by the afore-said convictions and sentences, the petitioners preferred an appeal, whereas the State through Ejaz Hussain (respondent No.2) filed a criminal revision for enhancement of their sentence. Both matters came up for hearing before learned Additional Sessions Judge, Renala Khurd, who *vide* judgment dated 30.11.2013 dismissed the petitioners' appeal, however while accepting criminal revision

of respondent No.2 to the extent of petitioner No.2 instead of Daman of Rs.15,000/- ordered him to pay Arsh at the rate of 5 % of Diyat i.e. Rs.126,603.65, hence the instant criminal revision.

2. Arguments heard. Record perused.

3. A minute perusal of the record reveals that the instant case is emerging from an occurrence having taken place on 19.04.2009 at about 8:00 a.m. in an area known as Mauza Islampura situated at a distance of 16-kilometers from Police Station Renala Khurd. During the occurrence, a bunch of perpetrators comprising upon Muhammad Iqbal & Muhammad Abbas (petitioners) and three others, namely Khushi Muhammad, Muhammad Shahbaz and Mst.Rukhsana Bibi were assigned the role of causing injuries to Ameer Muhammad (complainant). According to the prosecution case, all the accused equipped with weapons like clubs, hatchet etc. entered into the Dera of Muhammad Ameer (complainant) and injured him by causing injuries with their respective weapons. To be precise, each of the petitioners gave one club blow to Muhammad Ameer (complainant) and both the blows landed at his head, whereas rest of the accused were also attributed the role of causing injuries to the complainant.

4. In the wake of facts mentioned hereinabove, I have noticed that the incident in this case occurred on 19.04.2009 at about 8:00 a.m. However, the information of crime was conveyed to police on the next day i.e. on 20.04.2009 at 1:30 p.m. If correctly calculated there is a delay of about 30-hours in reporting the crime to the police. In this regard, it is observed that according to alleged MLC of Muhammad Ameer (complainant) he was produced before Dr.Muhammad Hussain (PW.3) for treatment by Shaukat Ali 793/C on the day of incident at about 9:30 a.m. In such a way, it can easily be

derived that the information *anent* the incident had come in the notice of the police within one hour and thirty minutes. However, despite scrutiny of the record the prosecution remained abortive in bringing it on record that what precluded the complainant or any other narrator of ocular account to report the crime to the police. The delay of about 30-hours in lodging the FIR in the peculiar circumstances of the case is significant and persuades the Court to take a cautious approach while evaluating the prosecution evidence. Reliance is placed upon the case reported as Muhammad Jahangir and another v. The State and others (2024 SCMR 1741), wherein the Supreme Court of Pakistan took notice of three hours in lodging the FIR and gave the following observation:-

“.....perusal of record reveals that FIR was lodged after an unexplainable delay of 3 hours despite the fact that the distance of the police station from the place of occurrence was 5 km. The time of occurrence is around 05:00/05:30 pm and the matter is reported at 08:30 p.m. The complainant had a bike that he used to go to the police station. This delay has not been encountered through plausible explanation by the prosecution.”

Even otherwise, Ameer Muhammad (complainant) died prior to recording of his statement and FIR was exhibited as Exh.PA and thus he was not cross-examined in order to prove its contents. In such eventuality, according to Articles 40 & 153 of Qanun-e-Shahadat Order, 1984, FIR (Exh.PA) cannot be used as a corroborative piece of evidence for upholding the conviction and sentence of the petitioners. In a recent judgment reported as Muhammad Ramzan v. The State (2025 SCMR 762), the Supreme Court of Pakistan while dealing with the matter in issue held as under:-

“It is settled law that FIR by itself is not a substantive piece of evidence unless its contents are affirmed on oath in the witness box by its maker and its maker is subjected to the test of cross-examination. In view of Articles 40 and 153 of QSO, FIR being a previous statement can only be used for contradicting its maker but unless the same is not (Sic) proved

through its maker, cannot be used as a substantive piece of evidence in favour of the prosecution's case.”

5. As per eyewitness account furnished by Muhammad Shahbaz (PW.1) and Muhammad Aslam (PW.2) both the petitioners struck the head of Ameer Muhammad (injured) once with their respective club. So far as, remaining assailants i.e. Khushi Muhammad, Muhammad Shahbaz and Mst.Rukhsana Bibi, are concerned, they were also burdened with the blame of inflicting injuries to the injured-complainant on different parts of his body. It is important to mention here that the eyewitnesses were disbelieved to the extent of the accused other than the petitioners and all of them were acquitted by the trial court. Surprisingly, the prosecution opted not to assail the acquittal of the afore-mentioned three assailants and did not file any appeal in this regard. In these circumstances, it would not be safe to hold the petitioners responsible for the commission of offence. Reference in this respect can be made to the case reported as Muhammad Nawaz and another v. The State and others (2024 SCMR 1731), wherein Supreme Court held as under:-

“It was a fact that except the petitioner, rest of the accused were acquitted of the charge by the High Court and one of them by the Trial Court on the same set of evidence. Complainant has ascribed injuries jointly to all the accused and did not single out the petitioner. Under such circumstances, it would not be safe to hold him alone responsible for causing death of the deceased”.

In the light of the afore-mentioned view of the Supreme Court of Pakistan, I have assessed the ocular account furnished by Muhammad Shahbaz (PW.1) and Muhammad Aslam (PW.2) with cautiousness. Insofar as Muhammad Shahbaz (PW.1) is concerned, it is observed that earlier statement of Muhammad Shahbaz was got recorded through local commission namely Muhammad Abid on 07.04.2011 as PW.1 whereby he

categorically deposed that he was not present at the relevant time and when the fight was finished, he reached at the spot. He also showed ignorance that who inflicted injury and upon whom. During cross examination, he deposed that complainant's son Ejaz brought him to the court for giving evidence against accused. The evidence of Muhammad Shahbaz (PW.1) was discarded by trial court because firstly while appearing in witness box on 07.04.2011 he claimed to be not an eye-witness of the occurrence. Though on 22.01.2013 Muhammad Shahbaz (PW.1) again appeared in the witness box and supported the prosecution case, however as he spoke in two controversial tunes, so his evidence was rightly discarded by the learned trial court. As regards Muhammad Aslam (PW.2), I have observed that he while appearing before the trial court stated that he accompanied the injured to the hospital but his name is not mentioned in the relevant police papers in proof of such version. During cross-examination, he also stated that they took the injured in a van to the hospital along with 10/12 persons of the family. This stance too was not mentioned in any statement of the witness got recorded under Section 161 Cr.P.C. and no particulars of the vehicle like make, model or registration number was mentioned through which the injured was shifted to the hospital for medical treatment. In such circumstances, Muhammad Aslam (PW.2) made dishonest improvement just in order to give some weight to the frail prosecution case. The afore-said improvement made by Muhammad Aslam (PW.2) rendered him unworthy of any credence. Reliance is placed upon case reported as Muhammad Nasir Butt and 2 others v. The State and others (2025 SCMR 662) wherein it was held as under:-

“Complainant and other prosecution witnesses in their statements recorded at trial, made dishonest improvements for assigning specific roles to each accused. Such improvements

created serious doubt about veracity of their testimony and it was not safe to place reliance on such statements.”

6. The medical evidence in this case was furnished by Dr.Muhammad Hassan (PW.3) who while appearing before the trial court deposed on different footing from the allegation levelled by the afore-said two eyewitnesses by stating that on 19.04.2009 at about 9:30 a.m., he medically examined Muhammad Amin, whereas the injured-complainant in the instant case is Ameer Muhammad. Since this is an important aspect, hence relevant portion of the statement of Dr.Muhammad Hassan (PW.3) is mentioned below:-

On 19.04.2009 at about 09.30 a.m. I was posted at R.H.C. Renala Khurd and on the same day I conducted the medically examination of Muhammad Amin s/o Chiragh Din aged 30 years produced by Shoukat Ali 793/C P.S. Saddar Renala Khurd.

It is also important to note here that the name of complainant as per FIR (Exh.PA) is Muhammad Ameer s/o Chiragh Din who was almost 70 years old at the time of occurrence but it is crystal clear from the evidence of Dr. Muhammad Hassan (PW.3) that he conducted medical examination of Muhammad Amin who was aged about 30 years. In the light of glaring contradiction in the statement of doctor and the medical examination who referred the MLC as 234/09 instead of 224/09 on the basis of which FIR was registered, the same cannot be read as MLC of Muhammad Ameer to whom both the petitioners were held responsible for causing injuries. In such a way, the medical evidence brought on record is of no help to the prosecution case. It is also evident from the scrutiny of record that initially the charge against the accused was framed by the trial court on 14.07.2009 wherein instead of Muhammad Ameer (complainant) the role of sustaining injury was attributed to Muhammad Amin who is alien to the case of

prosecution. I have also noted that again when the charge was framed on 02.05.2013, no name of complainant was mentioned in order to clarify that in fact Muhammad Ameer had sustained injuries at the hands of accused. Furthermore, as per MLC, Shoukat Ali 739/C brought Muhammad Amin for his medical legal examination but said Shoukat Ali was neither cited as witness nor entered appeared before the trial court.

7. So far as, the recovery of weapon of offence is concerned, admittedly, Muhammad Iqbal and Muhammad Abbas (petitioners) were shown to be armed with clubs at the time of occurrence but nothing was recovered from the possession of Muhammad Iqbal (petitioner No.1), however the recovery of a club (P.1) was shown to have been made from the possession of Muhammad Abbas (petitioner No.2) vide recovery memo Exh.PB. In this regard, the evidence of Tasawar Ali (PW.5) and Muhammad Ishfaq (PW.6) is very much relevant. Both of them though appeared in the witness box to support the recovery of club/sota (P.1) but during cross-examination reduced the legal worth of their statements into ashes by deposing that they have not specified any place of said corral from which recovery of sota was affected. They also stated that there were 3/4 rooms at the place of recovery but club/sota was recovered by Muhammad Abbas (petitioner No.2) from bushes. This recovery has no bearing upon the merits of the case. Reference is made to the case reported as Muhammad Ramzan v. The State (2025 SCMR 762) wherein the Supreme Court of Pakistan held as under:-

“No private witness of locality was associated to attest alleged iron box. Due to non-association of any private witness of locality to attest, the recovery memo lacked independent corroboration and the same was disbelieved.”

8. In view of the foregoing, the prosecution has failed to culpability of petitioners in the instant case through reliable,

trustworthy and confidence inspiring evidence and as such they are entitled to get the benefit of doubt. Needless to mention here that for extending benefit of doubt in favour of an accused, so many circumstances are not required, rather one circumstance which creates reasonable dent in the veracity of the prosecution case, can be taken into consideration for the purpose not as a matter of grace rather as a matter of right. Reliance is placed upon cases reported as *Tariq Pervez v. The State* (1995 SCMR 1345), *Riaz Masih als i Mithoo v. The State* (1995 SCMR 173) and *Muhammad Akram v. The State* (2009 SCMR 230). Consequently, while allowing **Criminal Revision No.41 of 2014**, the conviction and sentence of Muhammad Iqbal and Muhammad Abbas (petitioners) awarded by learned Judicial Magistrate Section-30 Renala Khurd through judgment dated 03.05.2013 and further enhanced by Additional Sessions Judge, Renala Khurd to the extent of petitioner No.2 *vide* judgment dated 30.11.2013 are set aside and they are acquitted of the charge.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE